

From: Ben Calder <Ben.Calder@ombudsman.vic.gov.au>  
Subject: Your complaint to the Victorian Ombudsman  
[SEC=OFFICIAL]  
Date: 5 August 2021 at 5:11:59 pm AEST  
To: "rich@richmclean.com.au" <rich@richmclean.com.au>,  
"richarddrawsstuff@gmail.com" <richarddrawsstuff@gmail.com>

Dear Rich Mclean,

Thank you for speaking with me yesterday afternoon. When we spoke, we discussed your complaint and the responses from the Mental Health Complaints Commissioner and Mercy Health. We also discussed concerns you have with a decision made by the Office of the Victorian Information Commissioner ('OVIC').

When we spoke, I explained the Ombudsman's role and the action I propose to take regarding your complaint. I said I would email you confirming this.

### **The Ombudsman's role**

The Ombudsman can consider complaints about the Mental Health Complaints Commissioner, Mercy Health and OVIC under the *Ombudsman Act 1973* (Vic).

As I advised yesterday, the Ombudsman is independent and does not represent any of the parties involved. We are unable to provide you with legal advice or representation.

### **Next steps regarding your complaint about Mercy Health**

I will make enquiries with Mercy Health about its letter to the Mental Health Complaints Commission dated 14 May 2021. Specifically, I will be asking questions about its acknowledgement of its failures in allowing you to be admitted with unauthorised material, and its consideration of obligations under the *Charter of Human Rights and Responsibilities Act 2006*.

Once I have received a response and assessed it, I will be in contact again. I anticipate this will be within two weeks. Regardless, I will contact you again by 19 August 2021.

## Your complaint about OVIC

Thank you for forwarding the emails from OVIC, including the notice of decision dated 28 July 2021. While we can consider complaints about OVIC, we ask you to try to resolve your complaint by following its complaints process first. Often this step will result in your complaint being resolved.

You can complain to OVIC by emailing your concerns with the notice of decision to [feedback@ovic.vic.gov.au](mailto:feedback@ovic.vic.gov.au). Your complaint will then be considered by the OVIC Complaints Coordinator and will be responded to in writing. More information can be found here: <https://ovic.vic.gov.au/about-us/complaints-about-us/>

You can contact us again if you are not satisfied with OVIC's response. In this case, please provide:

- A cover letter outlining what you are complaining about and why the response to your concerns from OVIC is inadequate.
- A copy of your complaint to OVIC, a copy of its response and any other supporting documents about your complaint.

I hope this information helps you. If you have any questions, please feel free to contact me on 9613 6234 or by return email.

### Ben Calder

Investigation Officer



Level 2, 570 Bourke Street  
MELBOURNE VIC 3000

**Regional Callers (excl. mob.): 1800 806 31**

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**Fax: 2461 7496 or 2461 4761**

**<https://www.ombudsman.vic.gov.au>**



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*The Victorian Ombudsman pays respect to First Nations custodians of Country throughout Victoria. This respect is extended to their Elders past, present and emerging. We acknowledge their sovereignty was never ceded.*

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